

SENATE No. 2141

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to amending certain use restrictions for the Foxborough State Hospital.

PETITION OF:

NAME:

Paul R. Feeney

Michael S. Chaisson

DISTRICT/ADDRESS:

Bristol and Norfolk

1st Bristol

SENATE No. 2141

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2141) of Paul R. Feeney and Michael S. Chaisson for legislation relative to amend certain use restrictions for the Foxborough State Hospital. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4973 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to amending certain use restrictions for the Foxborough State Hospital.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws,
2 chapter 312 of the acts of 1996 or any other general or special law to the contrary, the
3 commissioner of capital asset management and maintenance may release or amend certain use
4 restrictions held by the commonwealth for municipal recreational purposes and public safety and
5 other municipal building purposes on all or a portion of certain parcels of land on Payson road in
6 the town of Foxborough. The use restrictions are described in deeds recorded in the Norfolk
7 registry of deeds in book 20013, page 470 and book 13416, page 205 and shown as parcels H-1
8 and H-2 on a plan entitled “Approval Not Required Subdivision Plan”, prepared for Foxborough
9 State Hospital, Foxborough, MA, dated December 10, 1998 and prepared by Rizzo Associates
10 Inc., recorded in the Norfolk registry of deeds in plan book 465, page 256. The consideration for

11 the release or amendment of the use restrictions shall be a use restriction for housing purposes,
12 which may include, but shall not be limited to, market rate housing and senior housing purposes;
13 provided, however, that the town of Foxborough may subsequently convey all or a portion of the
14 parcels to a third party for housing purposes.

15 (b) The town of Foxborough shall be responsible for all costs and expenses of any
16 transaction authorized pursuant to subsection (a) as determined by the commissioner of capital
17 asset management and maintenance including, but not limited to, the costs of any engineering,
18 surveys, appraisals, title examinations and recording fees.